

[doc. web n. 9929036]
Provision of July 6, 2023
Register of provisions
No. 291 of July 6, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of
personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018,
containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU)
2016/679";

HAVING REGARD to the inspection report drawn up by the Local Police of the Municipality of Ancona,
dated 01/12/2023, at the public establishment named "SUROVI" (Surovi Indian Restaurant and Kebab
of Chowdhury Monika), located in Ancona, Via Vinicio Rossi 8, which established the presence of an
active and functioning video surveillance system, for which the information pursuant to Article 13 of the
Regulation was not present;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. The finding of the Local Police of the Municipality of Ancona – Commercial Police Section.

With a note received on 03/15/2023, the Local Police of the Municipality of Ancona – Commercial
Police Section, transmitted to this Authority a copy of the inspection report carried out by them on
01/12/2023, at the establishment named "SUROVI" (Surovi Indian Restaurant and Kebab of
Chowdhury Monika), located in Ancona, Via Vinicio Rossi 8.

During the inspection, the Local Police verified the presence of a video surveillance system, consisting
of eight cameras positioned inside the establishment, all operational and suitable for image detection.
In light of the processing of personal data carried out through the aforementioned system, whose
ownership was identified as belonging to the sole proprietorship Chowdhury Monika, the absence of
the information pursuant to Article 13 of Regulation EU 679/2016 was established, in violation of the
provisions regarding the processing of personal data.

The Office, based on the findings made in the aforementioned report, proceeded to notify, with a note
dated 05/02/2023 (prot. No. 0070828/23) to the sole proprietorship the initiation of the procedure for
the adoption of the measures referred to in Articles 58, paragraph 2, and 83 of the Regulation, in
accordance with the provisions of Article 166, paragraph 5, of the Code, in relation to the violation of
Article 13 and Article 5, paragraph 1, letter a), of the Regulation.

The aforementioned business, despite being informed by the Office of the possibility to submit
defensive writings or documents in relation to the sanctioning procedure against it, did not submit any
documentation in this regard.

2. The legal framework of the processing carried out.

Given that the use of video surveillance systems constitutes a processing of personal data pursuant to
Article 4, No. 2, of the Regulation, it is noted that such processing must be carried out in compliance

with the general principles contained in Article 5 of the Regulation and, in particular, the principle of transparency which presupposes that “data subjects must always be informed that they are about to enter a video-surveilled area.”

For this purpose, therefore, with particular reference to the processing carried out through video surveillance systems, it is necessary that the data controller prepares suitable informative signs according to the indications contained in point 3.1. of the provision on video surveillance - April 8, 2010 [1712680] (in this sense also the FAQs on video surveillance published on the Authority's website) so that data subjects are made “aware of the fact that a video surveillance system is in operation.”

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, in point 7), specifies that “the most important information must be indicated [by the controller] on the warning sign itself (first level) while further mandatory details can be provided by other means (second level).”

The guidelines also provide that “Such information may be provided in combination with an icon to give, in a clearly visible, intelligible, and legibly clear manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information should be adapted to the various locations.” The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the surveilled area (approximately at eye level) “to allow the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary.”

3. The outcome of the investigation and the sanctioning procedure.

Based on the inspection report drawn up by the Local Police of the Municipality of Ancona, it has emerged that the video surveillance system, installed at the company “SUROVI” (Surovi Indian Restaurant and Kebab), located in Ancona, Via Vinicio Rossi 8, was active and operational and was lacking the information required by Article 13 of the Regulation. Such conduct is in contrast with what is established by Article 13 of the Regulation, according to which the data controller is required to provide the data subject with all information regarding the essential characteristics of the processing, as well as in violation of the general principle of transparency of processing, as per Article 5, paragraph 1, letter a) of the same Regulation.

It is noted that the inspection report was signed without objections by the owner of the business, in the presence of another employee. Following the investigation and the established unlawfulness of the conduct as described above, it is necessary to:

1. order the data controller, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to proceed with the application of suitable signs containing information on the processing as indicated in point 2 of this provision;

2. adopt an injunction order pursuant to Article 58, paragraph 2, letter i) of the Regulation for the application of an administrative monetary sanction.

4. Injunction Order. The Guarantor, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary sanction provided for by Article 83, paragraph 5, of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company through the video surveillance system, in the absence of the information referred to in Article 13 of the Regulation.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative monetary sanction and its quantification, considering that the sanction must be “effective, proportionate, and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, gravity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility related to the failure to fulfill the obligation to provide information to the data subjects;

- the absence of specific previous violations by the company related to breaches of the data protection regulations;
- the circumstance that there has been no participation and cooperation with the Authority during the proceedings, resulting in the inability to verify that the legal obligations have been fulfilled.

In light of the aforementioned elements, evaluated in their entirety, including the economic conditions of the offender determined based on the tax declaration for the year 2021, and the sanctions imposed by the Authority in similar cases, it is deemed appropriate to determine the amount of the monetary sanction at €1,000.00 (one thousand) for the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation.

In this context, also considering the type of violation established, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of this provision on the Guarantor's website should proceed.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor, are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR declares, pursuant to Articles 57, paragraph 1, letters a) and h) and 83 of the Regulation, the unlawfulness of the processing carried out by D.I. Chowdhury Monika, VAT No. 02843880424, through the use of the video surveillance system installed at the establishment named "SUROVI" (Surovi Indian Restaurant and Kebab of Chowdhury Monika), located in Ancona, Via Vinicio Rossi 8, in the terms stated in the reasoning, for the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation;

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, the individual business SUROVI GOROWA RESTAURANT OF CHOWDHURY MONIKA, VAT No. 02843880424, to pay the sum of €1,000.00 (one thousand) as an administrative monetary sanction for the violation indicated in the reasoning;

COMMANDS

the same business to comply, pursuant to Article 58, paragraph 2, letter d) of the Regulation, with the processing of data carried out in accordance with the provisions of the Regulation, with reference to the placement, where it has not already done so, of suitable informative signs regarding the presence of cameras;

to pay the sum of €1,000.00 (one thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to resolve the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the deadline referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the Guarantor's website and considers that the conditions set forth in Article 17 of Regulation No. 1/2019 are met.

It is also ordered that the initiatives undertaken to implement the provisions of this decision be communicated and to provide adequately documented feedback pursuant to Article 157 of the Code, within the term of 60 days from the date of notification of this

provision; any failure to respond may result in the application of the administrative sanction provided for in Article 83, paragraph 5, letter e) of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, July 6, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei